

for appellant. With them on the briefs were *R. Stan Mortenson*, *Raymond G. Larroca*, *Martin D. Minsker*, and *William H. Jeffress, Jr.*

*Solicitor General McCree* argued the cause for the federal appellees. On the brief were former *Acting Solicitor General Friedman*, *Acting Assistant Attorney General Babcock*, *Deputy Assistant Attorney General Goldbloom*, *Robert E. Kopp*, and *Anthony J. Steinmeyer*. *Robert E. Herzstein* argued the cause for appellees Reporters Committee for Freedom of the Press et al. With him on the brief were *Andrew S. Krulwich*, *Mark J. Spooner*, *Peter T. Grossi, Jr.*, and *Leonard B. Simon*. *Leon Friedman*, *John H. F. Shattuck*, and *Joel M. Gora* filed a brief for appellees Hellman et al. *William A. Dobrovir* and *Andra N. Oakes* filed a brief for appellee Anderson.

MR. JUSTICE BRENNAN delivered the opinion of the Court.

Title I of Pub. L. 93-526, 88 Stat. 1695, note following 44 U. S. C. § 2107 (1970 ed., Supp. V), the Presidential Recordings and Materials Preservation Act (hereafter Act), directs the Administrator of General Services, an official of the Executive Branch, to take custody of the Presidential papers and tape recordings of appellant, former President Richard M. Nixon, and promulgate regulations that (1) provide for the orderly processing and screening by Executive Branch archivists of such materials for the purpose of returning to appellant those that are personal and private in nature, and (2) determine the terms and conditions upon which public access may eventually be had to those materials that are retained. The question for decision is whether Title I is unconstitutional on its face as a violation of (1) the separation of powers; (2) Presidential privilege doctrines; (3) appellant's privacy interests; (4) appellant's First Amendment associational rights; or (5) the Bill of Attainder Clause.

On December 19, 1974, four months after appellant resigned as President of the United States, his successor, President Gerald R. Ford, signed Pub. L. 93-526 into law. The next